

Court No. - 37

Case :- WRIT - C No. - 17816 of 2014

Petitioner :- Urmila Devi (Smt.)

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 3 Others

Counsel for Petitioner :- Anil Kumar Shukla

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

The submission of the learned counsel for the petitioner is that though after an inspection in the premises of the petitioner, the petitioner was alleged to be involved in theft of electricity but in the criminal case lodged against the petitioner in this regard, a final report has been filed by the police as the petitioner was not found involved in theft of electricity. According to the petitioner, the said final report has already been accepted by the competent court. The petitioner is claiming the benefit of Clause 8.2(x)(h) of the U.P. Electricity Supply Code, 2005. It is thus contended that the recovery being made from the petitioner in pursuance of the assessment order, which has been passed on the ground of the inspection report, is thus liable to be quashed.

In our view, the matter requires consideration.

Sri R.S. Umrao has put in appearance on behalf of the respondents no. 1 and 2 and the learned Standing Counsel has accepted notice for the respondent no. 4. They pray for and are granted a month's time to file counter affidavit. The petitioner shall have two weeks thereafter to file rejoinder affidavit.

List immediately thereafter.

Considering the facts and circumstances of this case, it is directed that the recovery from the petitioner in pursuance of the impugned recovery citation dated 30.1.2014 shall remain stayed.

The name of Sri R.S. Umrao shall also be shown as counsel for the respondents when the case is listed next.

Order Date :- 28.3.2014

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(Attau Rahman Masoodi, J.)

(Vineet Saran, J.)

Court No. - 39

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Counsel for Petitioner :- Anil Kumar Shukla

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,R.S.Umrao

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

Cause list has been revised. None appears on behalf of either of the parties.

The petition is therefore passed over.

Order Date :- 12.5.2014

Rmk.

Court No. - 21

Case :- WRIT - C No. - 17816 of 2014

Petitioner :- Urmila Devi Smt.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Anil Kumar Shukla

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Harshita Rani,R.S.Umrao

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

None appears on behalf of the petitioner to press the writ petition even in the revised call.

Learned Standing Counsel and Shri Veerendra Kumar Gautam holding brief of Shri Baleshwar Chaturvedi, learned counsel for the respondents are present.

The writ petition is dismissed for want of prosecution.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Rama Kant

Court No. - 40

Case :- WRIT - C No. - 17816 of 2014

Petitioner :- Urmila Devi Smt.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Anil Kumar Shukla

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Harshita
Rani,R.S.Umrao

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

Order on the Delay Condonation Application

Heard.

Cause shown for delay in filing the restoration application is sufficient. Delay in filing the restoration application is condoned.

The delay condonation application is allowed.

Order on the restoration application

Heard.

Cause shown for non appearance is sufficient. The order dated 15.03.2023 dismissing the writ petition for want of prosecution, is recalled. the restoration application is allowed.

The writ petition is restored to its original number.

List this matter in the next cause list.

Order Date :- 6.10.2023

Rama Kant



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 17816 of 2014

Urmila Devi Smt.

.....Petitioner(s)

Versus

Dakshinanchal Vidyut Vitran Nigam Ltd. And 3
Others

.....Respondent(s)

Counsel for Petitioner(s)	: Prem Narayan Rai, Ram Pyare
Counsel for Respondent(s)	: Baleshwar Chaturvedi, Harshita Rani, R.S.Umrao

Court No. - 21

**HON'BLE MANOJ KUMAR GUPTA, J.
HON'BLE ARUN KUMAR, J.**

1. Learned counsel for the petitioner prays for and is granted time to disclose whether final report said to have been submitted in the criminal case registered against him, has been accepted or not.
2. List after three weeks.
3. In the meantime, learned counsel for the respondent-Electricity Department shall also complete his instructions.

(Arun Kumar,J.) (Manoj Kumar Gupta,J.)

September 24, 2025
Jaideep/-



2025:AHC:201046-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 17816 of 2014

Urmila Devi Smt.

.....Petitioner(s)

Versus

Dakshinanchal Vidyut Vitran Nigam Ltd. And 3
Others

.....Respondent(s)

Counsel for Petitioner(s)	: Anil Kumar Shukla, Prem Narayan Rai, Ram Pyare
Counsel for Respondent(s)	: Baleshwar Chaturvedi, C.S.C., Harshita Rani, R.S.Umrao

Court No. - 3

HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE INDRAJEET SHUKLA, J.

1. Heard Sri P.N. Rai, learned counsel for the petitioner, Sri Mukul Tripathi, learned standing counsel and Sri V.K. Gautam holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Distribution Corporation.
2. Present writ petition has been filed challenging the impugned Assessment Order dated 23.10.2013 and the consequential recovery certificate dated 30.01.2014 issued by Electricity Distribution Corporation against the petitioner.
3. Today, it has been stated that the entire action emerged on allegation of theft. Upon police investigation closure report has been submitted as no offence has been found against the petitioner.
4. In view of the subsequent event, we find no useful purpose to keep this writ petition pending at this stage.
5. The subsequent event may have direct impact on the determination of civil liability of the petitioner towards electricity dues. Once the allegation of theft has been disbelieved, the Distribution Corporation may re-visit its demand of electricity dues.
6. Accordingly, in view of the subsequent event the order dated

23.10.2013 is set-aside. The writ petition is **disposed of** with the direction upon respondent no.2 to pass a fresh order after giving fresh opportunity of hearing to the petitioner. Subject to the petitioner filing a copy of this order before respondent no.2 along with further reply/objection supported by personal affidavit annexing thereto all documents on which he may seek to rely, within a period of two weeks, the respondent no.2 may pass a fresh order dealing with those objections as expeditiously as possible, preferably within a period of two months.

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)

November 12, 2025

S.P.